

Ex Parte Reexamination Filings With EFS-Web

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Who We Are

Kevin McNish



McNish PLLC

- Cloud-based Patent Office and Federal Circuit boutique firm.
- Represents clients in *inter partes* reviews, post-grant reviews, *ex parte* reexams, and related appeals.

Who We Are

Ashley Cheung



Virtual Patent Gateway, LLC

- Paralegal Support Service for Patent Professionals.
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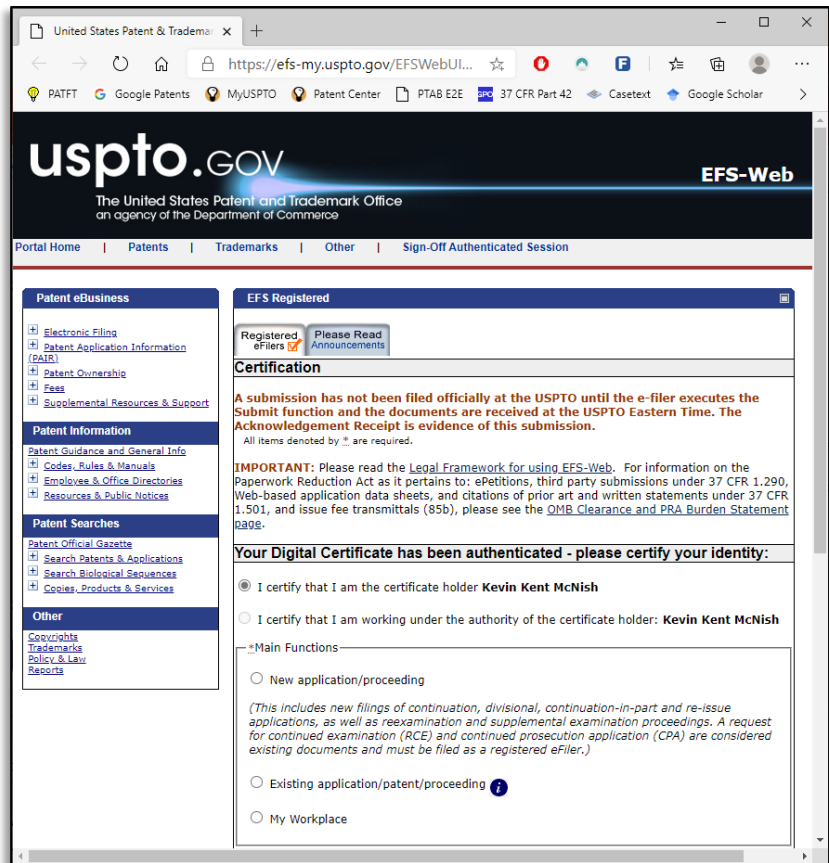
Introduction

Ex Parte Reexamination

- *Ex parte* reexamination is procedure by which a patent owner or a third party can request the USPTO to reexamine an issued patent.
- A request must raise a substantial new question of patentability (SNQ) based on prior art patents and printed publications.
 - Unlike an IPR petition, a reexam request can raise double patenting.
- After the request is filed, *ex parte* reexamination typically involves only the patent owner and the USPTO.

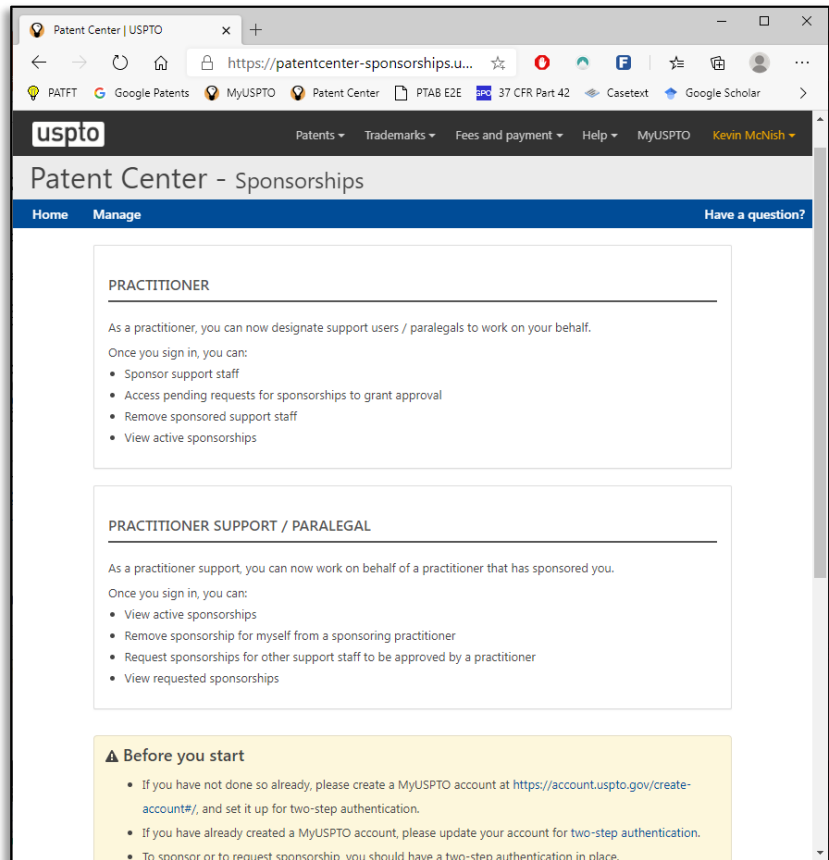
EFS-Web

- [EFS-Web](https://efs-my.uspto.gov/EFSSWebUI...) is the USPTO's filing system for patent applications and other *ex parte* proceedings.
- It'll be fully replaced by Patent Center ... one day.



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- To use EFS-Web, you must either:
 - Be a registered practitioner; or
 - Be sponsored by a registered practitioner.
- To be sponsored, set up an account with my.uspto.gov and enable two-factor authentication.
- For registered practitioners, the sponsorship page is at <https://patentcenter-sponsorships.uspto.gov>.



Overview of Topics

- Preparing and Gathering Documents
- Filing an *Ex Parte* Reexamination Request Using EFS-Web
- Filings After the Request
 - Petition for Rehearing
 - Filings for Patent Owners
 - Responding to Patent Owner Filings

Preparing and Gathering Documents

Mise en place.

Checklist for Filing

- Cover Sheet
- Request for Reexamination
- Required Supporting Documents
 - Prior art patents, printed publications, and all other materials cited
 - Information Disclosure Statement listing all materials cited
 - Copy of the “entire patent” to be reexamined
 - Certificate of Service
- Recommended Supporting Documents
 - Expert Declarations
 - “Librarian” Declarations
 - Claim Charts
- Certificate of Service
- Fees

Cover Sheet (PTO/SB/57)

PTO/SB/57 (9-1-18)
Approved for use through 06/30/2018. OMB 0651-0064
U.S. Patent and Trademark Office, U.S. DEPARTMENT OF COMMERCE

Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number.
(Also referred to as FORM PTO-1485)

REQUEST FOR EX PARTE REEXAMINATION TRANSMITTAL FORM

Address to:
Mail Stop Ex Parte Reexam
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Attorney Docket No.: 11869.0033
Date: June 1, 2018

1. ☒ This is a request for ex parte reexamination pursuant to 37 CFR 1.510 of patent number 7,499,903 issued March 3, 2009. The request is made by:
☐ patent owner. ☒ third party requester.

2. ☒ The name and address of the person requesting reexamination is:
Cisco Systems, Inc.
170 West Tasman Dr.
San Jose, CA 95134

3. Requester ☐ asserts small entity status (37 CFR 1.27) or ☐ certifies micro entity status (37 CFR 1.29). Only a patent owner requester can certify micro entity status. Form PTO/SB/15A or B must be attached to certify micro entity status.

4. This request is accompanied by payment of the reexamination fee as set forth in:
☒ 37 CFR 1.20(c)(2); or
☐ 37 CFR 1.20(c)(1). In checking this box for payment of the fee set forth in 37 CFR 1.20(c)(1), requester asserts that this request has forty (40) or fewer pages and complies with all other requirements of 37 CFR 1.20(c)(1).
Payment of the reexamination fee is made by the method set forth below.
a. ☐ A check in the amount of \$_____ is enclosed to cover the reexamination fee;
b. ☒ The Director is hereby authorized to charge the reexamination fee to Deposit Account No. 50-6822;
c. ☐ Payment by credit card. Form PTO-2038 is attached; or
d. ☐ Payment made via EFS-Web.
☒ In addition, the Director is hereby authorized to charge any fee deficiencies to Deposit Account No. 50-6822

5. ☒ Any refund should be made by ☐ check or ☒ credit to Deposit Account No. 50-6822 37 CFR 1.26(c). If payment is made by credit card, refund must be to credit card account.

6. ☒ A copy of the patent to be reexamined having a double column format on one side of a separate paper is enclosed. 37 CFR 1.510(b)(4).

7. ☐ CD-ROM or CD-R in duplicate, Computer Program (Appendix) or large table
☐ Landscape Table on CD

(Page 1 of 3)

This collection of information is required by 37 CFR 1.510. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) a request for reexamination. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.11 and 1.14. This collection is estimated to take 18 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Mail Stop Ex Parte Reexam, Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.
If you need assistance in completing the form, call 1-800-PTO-9199 and select option 2.

- Form PTO/SB/57 is a checklist for the reexam request that you're about to file.

- Patent and claims to be reexamined
- Identity of requester (optional)
- Fee information
- Service address of patent owner
- Related litigation

Request for Reexamination

- Required components:

- A statement pointing out each substantial new question of patentability based on prior patents and printed publications.

37 C.F.R. § 1.510(b)(1).

- An identification of every claim for which reexamination is requested.

37 C.F.R. § 1.510(b)(2).

- A detailed explanation of how to apply the prior art to each claim.

37 C.F.R. § 1.510(b)(2).

- A certification of no IPR, PGR, or CBM estoppel.

37 C.F.R. § 1.510(b)(6).

Request for Reexamination

- Recommended components:
 - An exhibit list that assigns a unique number to each supporting document.
 - An explanation of how to construe the claims in light of any statements that the patent owner has filed in another proceeding about claim construction.
 - *E.g.*, litigation claim construction briefs, PTAB briefs on claim construction, office action responses, etc.
 - If cited in the request, those patent owner statements **must** be filed with the request.

37 C.F.R. § 1.510(b)(2).

Exhibit List

- I use an IPR-style exhibit list for my reexamination filings.
- The copy of the patent to be reexamined is Ex. 1001, its file history is Ex. 1002, and so on.
- For a second request, start the exhibit list with Ex. 1101.

Request For *Ex Parte* Reexamination Of U.S. Patent No. 7,499,903
Attorney Docket No. 11869.0033

EXHIBIT LIST

Exhibit No.	Description
1101	U.S. Patent No. 7,499,903.
1102	Prosecution History of U.S. Patent No. 7,499,903.
1103	Declaration of Henry Houh, Ph.D. (cited as "Houh Decl.").
1104	U.S. Patent No. 6,393,423 to Goedken ("Goedken").
1105	U.S. Patent No. 7,177,316 to Pilecek ("Pilecek").
1106	U.S. Patent No. 7,453,933 to Watts et al. ("Watts").
1107	U.S. Patent No. 6,513,013 to Stephanou ("Stephanou").
1108	U.S. Patent No. 5,615,367 to Bennett ("Bennett").
1109	Claim Construction Order, ECF No. 168 in <i>XpertUniverse, Inc. v. Cisco Systems, Inc.</i> , No. 1:09-cv-00157 (D. Del.).
1110	Claim Construction Order, ECF No. 183 in <i>XpertUniverse, Inc. v. Cisco Systems, Inc.</i> , No. 3:17-cv-03848 (N.D. Cal.).
1111	Cisco's Request for <i>Ex Parte</i> Reexamination in Reexamination Control No. 90/014,147 (June 1, 2018).
1112	Order Granting Reexamination in Reexamination Control No. 90/014,147 (June 26, 2018).
1113	Non-Final Office Action in Reexamination Control No. 90/014,147 (Sept. 13, 2018).
1114	Patent Owner's Response to Non-Final Office Action in Reexamination Control No. 90/014,147 (Nov. 13, 2018).
1115	Final Rejection in Reexamination Control No. 90/014,147 (Dec. 13, 2018).
1116	Examiner's Interview Summary in Reexamination Control No. 90/014,147 (Jan. 24, 2019).
1117	Patent Owner's Response to Final Official Action in Reexamination Control No. 90/014,147 (Feb. 13, 2019).
1118	Notice of Intent to Issue a Reexamination Certificate in Reexamination Control No. 90/014,147 (Mar. 5, 2019).
1119	Excerpt of IEEE 100 The Authoritative Dictionary of IEEE Standards Terms, Seventh Edition in Reexamination Control No. 90/014,147.
1120	Excerpt of Microsoft Computer Dictionary, Fifth Edition in Reexamination Control No. 90/014,147.
1121	Reexamination Certificate in Reexamination Control No. 90/014,147 (Apr. 10, 2019).
1122	First Information Disclosure Statement in Reexamination Control No. 90/014,147 (Nov. 13, 2018).
1123	Second Information Disclosure Statement in Reexamination Control No. 90/014,147 (Mar. 3, 2019).
1124	Signed First Information Disclosure Statement in Reexamination Control No. 90/014,147 (Dec. 13, 2018).
1125	Signed Second Information Disclosure Statement in Reexamination Control No. 90/014,147 (Mar. 5, 2019).
1126	EFS Receipt in Reexamination Control No. 90/014,147 (Mar. 3, 2019).

vii

Required Supporting Documents (pt. 1)

- Copies of the prior art patents and printed publications used in the reexamination request, including translations of the “necessary and pertinent” portions of foreign-language references.

37 C.F.R. § 1.510(b)(3).

- An information disclosure statement (IDS) listing all prior art patents, printed publications, and all other materials relied upon in the request.
 - Expert declarations, librarian declarations, translations, patent owner statements, etc.

Required Supporting Documents (pt. 2)

- A copy of the “entire patent” to be reexamined, including all certificates and disclaimers.

37 C.F.R. § 1.510(b)(4).

- For third-party requests, a certificate of service on the patent owner.

37 C.F.R. § 1.510(b)(5).

Recommended Supporting Documents

- A copy of the patent's file history.
- Expert declarations.
- “Librarian” declarations to establish the prior art status of a non-patent reference.
- Claim charts summarizing each proposed rejection.
- Any litigation claim construction orders.

Certificate of Service

Request For *Ex Parte* Reexamination Of U.S. Patent No. 7,499,903 – Attachment 2
Attorney Docket No. 11869.0033

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

Patentee/Applicant:	XpertUniverse, Inc.
Inventor(s):	James B. Nevin et al.
Patent No./App. No.:	7,499,903 B2
Filed:	January 24, 2005
Title:	SEMANTIC TO NON- SEMANTIC ROUTING FOR LOCATING A LIVE EXPERT
Examiner:	TBD
Art Unit:	TBD
Conf. No.:	TBD

**CISCO SYSTEMS, INC.'S CERTIFICATE OF SERVICE FOR ITS
REQUEST FOR EX PARTE REEXAMINATION OF U.S. PATENT NO. 7,499,903**

The undersigned certifies that on June 1, 2018, true and complete copies of each of the following materials:

- Transmittal Form For Cisco Systems, Inc.'s Request For *Ex Parte* Reexamination Of U.S. Patent No. 7,499,903;
- Cisco Systems, Inc.'s Request For *Ex Parte* Reexamination Of U.S. Patent No. 7,499,903;
- U.S. Patent No. 7,499,903 (Ex. A);
- Prosecution History of U.S. Patent No. 7,499,903 (Ex. B);
- Prosecution History of U.S. Patent No. 8,793,206 (Ex. C);
- U.S. Patent No. 6,393,423 to Goedken (Ex. D);
- U.S. Patent No. 7,177,316 to Pilecek (Ex. E);
- U.S. Patent No. 7,453,933 to Watts et al. (Ex. F);
- U.S. Patent No. 6,513,013 to Stephanou (Ex. G);
- *XpertUniverse, Inc. v. Cisco Systems, Inc.*, No. 1:09-cv-00157 (D. Del.), Dkt. No. 168 (Ex. H);

- The certificate of service must list:
 - All documents filed with the USPTO (including the Certificate of Service itself);
 - The method of service; and
 - The name and address of all parties served.
- Serve the patent owner at the patent's correspondence address in Public PAIR.
- Although serving the patent owner's litigation counsel is optional, it's a best practice.

Fees

Under the Paperwork Reduction Act of 1995, no person is required to provide information on this form unless it is requested by a person who is authorized to collect the information. (Also referred to as PTO Form PTO-1455)

REQUEST FOR EX PARTE REEXAMINATION

Address to:
Mail Stop Ex Parte Reexam
Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

1. ☒ This is a request for ex parte reexamination issued March 3, 2009.
☐ patent owner.

2. ☒ The name and address of the person:
Cisco Systems, Inc.
170 West Tasman Dr.
San Jose, CA 85134

3. Requester ☐ asserts small entity; a patent owner requester can certify micro entity status.

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☐ 37 CFR 1.20(c)(1). In checking this box for payment of the fee set forth in 37 CFR 1.20(c)(1), requester asserts that this request has forty (40) or fewer pages and complies with all other requirements of 37 CFR 1.20(c)(1).

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a. ☐ A check in the amount of \$_____ is enclosed to cover the reexamination fee;
b. ☒ The Director is hereby authorized to charge the reexamination fee to Deposit Account No. 50-6822;
c. ☐ Payment by credit card. Form PTO-2038 is attached; or
d. ☐ Payment made via EFS-Web.

☒ In addition, the Director is hereby authorized to charge any fee deficiencies to Deposit Account No. 50-6822.

5. ☒ Any refund should be made by ☐ check or ☒ credit to Deposit Account No. 50-6822 37 CFR 1.26(c). If payment is made by credit card, refund must be to credit card account.

6. ☒ A copy of the patent to be reexamined is enclosed. 37 CFR 1.510(b)(4).

7. ☐ CD-ROM or CD-R in duplicate, Computer Program (Appendix) or large table
☐ Landscape Table on CD

(Page 1 of 3)

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- \$12,600 for > 40 pages.
- \$6,300 for ≤ 40 pages (if properly typeset).

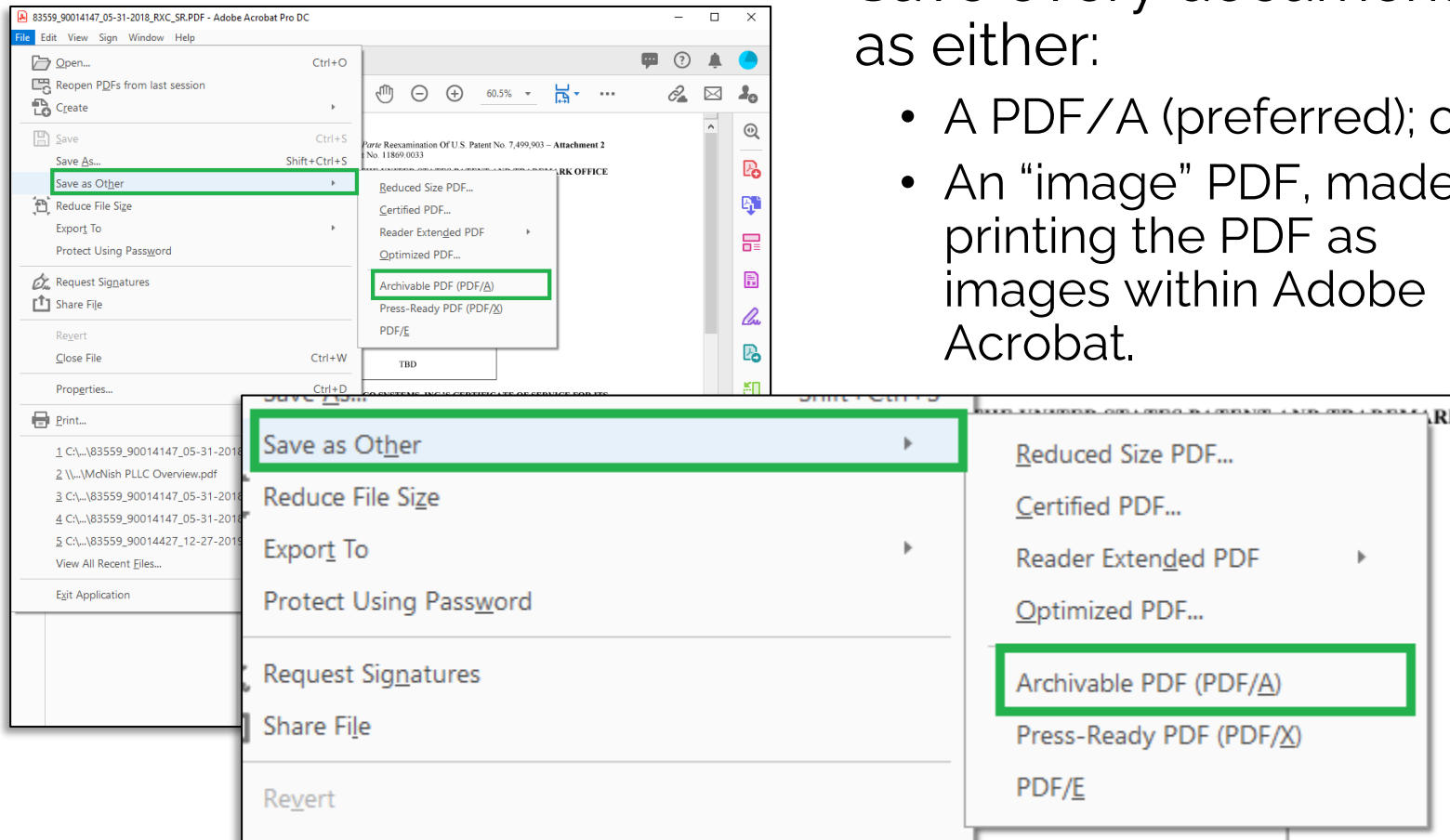
Once you've gathered everything . . .

- Put all of the documents that you plan to file in a single folder.
- Put a slipsheet on each exhibit with its exhibit number.
- If any exhibit exceeds 25 MB, split it into multiple parts, and give each part its own slipsheet (e.g., Ex. 1001 part 1).

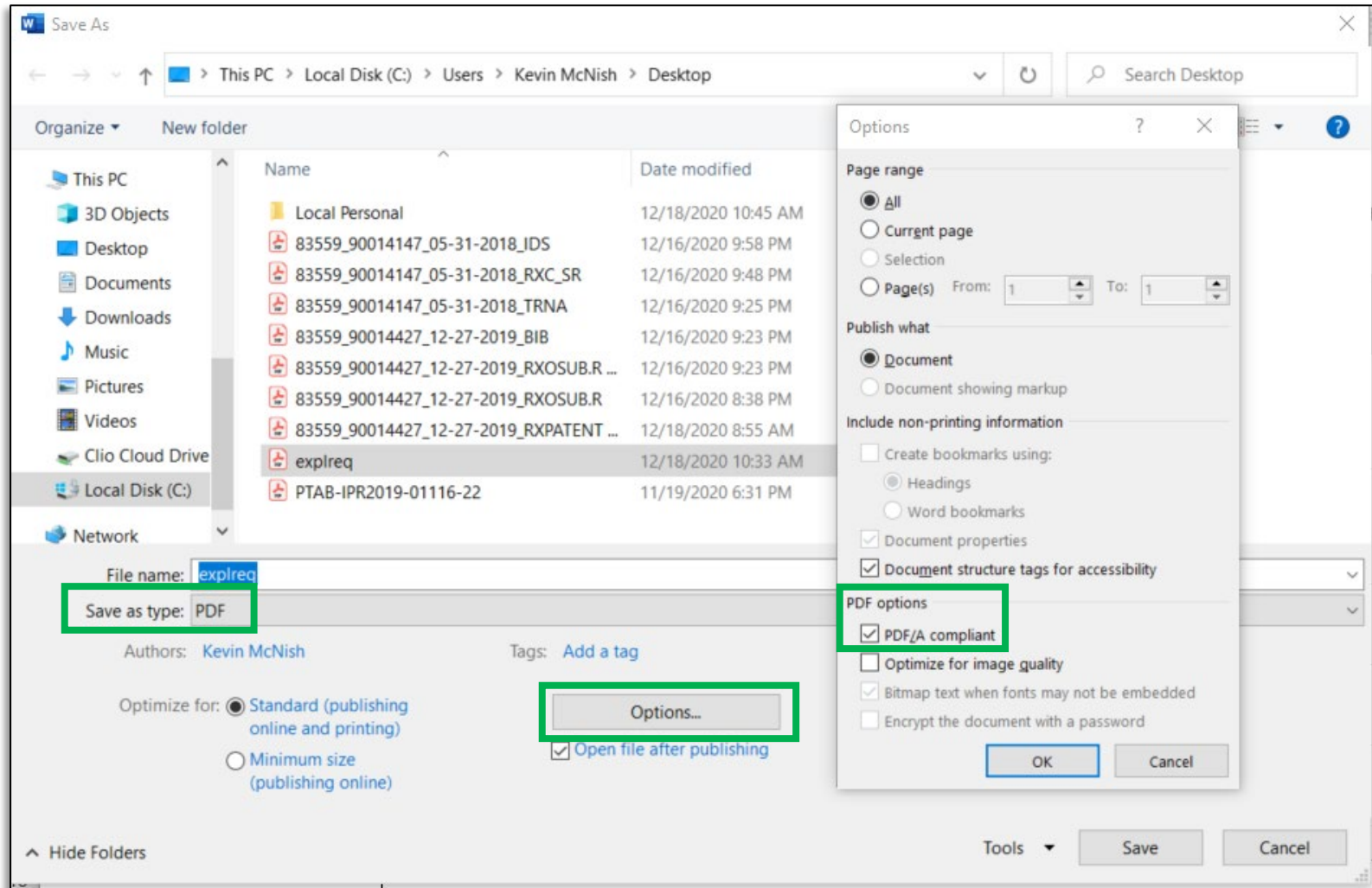
EXHIBIT 1101

Once you've gathered everything . . .

- Save every document as either:
 - A PDF/A (preferred); or
 - An “image” PDF, made by printing the PDF as images within Adobe Acrobat.



Saving a Word Document as a PDF/A



Filing an *Ex Parte* Reexamination Request Using EFS-Web

Let's get cooking.

United States Patent & Trademark Office

https://efs-my.uspto.gov/EFSSWebUIRegistered/EFSSWebRegistered

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Other

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Your Digital Certificate has been authenticated - please certify your identity:

☒ I certify that I am the certificate holder **Kevin Kent McNish**

☐ I certify that I am working under the authority of the certificate holder: **Kevin Kent McNish**

***Main Functions**

☒ New application/proceeding

(This includes new filings of continuation, divisional, continuation-in-part and re-issue applications, as well as reexamination and supplemental examination proceedings. A request for continued examination (RCE) and continued prosecution application (CPA) are considered existing documents and must be filed as a registered eFiler.)

***Select Type of New Application/Proceeding**

☒ Utility (Please select a type below) *i*

- ☐ **Track 1 Prioritized Examination - Nonprovisional Application under 35 USC 111(a)** *i*
- ☐ Accelerated Exam *i*
- ☐ Nonprovisional Application under 35 USC 111(a) *i*
- ☐ Provisional *i*
- ☒ Reexam *i*

Third Party requesters are not eligible to receive the micro-entity discount. Effective September 16, 2012, new Inter Partes Reexam requests will not be accepted. To file a petition for Inter Partes Review, please go to the [Patent Review Processing System](#)

*** Reexam Type** | Ex Parte - Third Party *i*

- ☐ Reissue *i*
- ☐ U.S. National Stage under 35 USC 371 *i*
- ☐ Design (Please select a type below) *i*
- ☐ International Application (PCT) for filing in the US receiving office *i*
- ☐ International Design Application (Hague) for filing through the USPTO as an office of indirect filing *i*
- ☐ Supplemental Examination *i*

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A submission has not been filed officially at the USPTO until the e-filer executes the Submit function and the documents are received at the USPTO Eastern Time. The Acknowledgement Receipt is evidence of this submission.

All items denoted by * are required.

☒ **Application Data** - An ADS may be attached as a PDF

☐ **Web-based ADS** - An ADS form is auto-generated based on data entered on a web screen. A Web-based ADS can only be submitted with the filing of a new application on or after September 16, 2012, or with a U.S. national stage entry under 35 USC 371 where the Patent Cooperation Treat (PCT) filing date (international filing date) is on or after September 16, 2012. Do not attach an ADS as a PDF if submitting a Web-based ADS.

Based on the above selection of the radio button, the data will be selected from either the Application Data fields or Web-Based ADS fields after the continue button is clicked. Any data entered in the non-selected form would not be retained.

* Title of Invention

Attorney Docket Number

First Named Inventor:

*First Name

Middle Name

* Last Name

Correspondence Address:

Enter a customer number for correspondence or provide an address where USPTO should send correspondence for this application.

☒ **Customer Number** Please select a valid Customer Number * Please enter a valid Customer Number

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If you need help:

- To ask questions about Patent e-Filing, or to suggest improvements to the online system, or report technical problems, please call the Patent Electronic Business Center at (866) 217-9197 (toll free) or send email to EBC@uspto.gov.
- Send general questions about USPTO programs to the [USPTO Contact Center \(UCC\)](#).
- For general questions regarding a petition, or requirements for filing a petition, contact the Office of Petitions Help Desk at 1 800-786-9199.

Attaching Documents

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Documents Not permitted Via EFS-WEB: Documents/Submissions not permitted to be filed using EFS-WEB include: (1) District court complaints or notices of appeals to the Federal Circuit; (2) Third Party Papers in patent applications such as Protest under 37 CFR 1.291; (3) Assignment documents under 35 U.S.C. 261. [See more information and complete list of documents not permitted.](#)

This is the application data associated with your filing. If any information is incorrect, please edit the [Application Data](#)

Title of Invention	EXAMPLE
First Named Inventor	INVENTOR FIRST NAME INVENTOR LAST NAME
Customer Number or Correspondence Address	174882 McNish PLLC 4602 21st St. #1706 Long Island City NY 11101 US docketing@mcnishpllc.com (929) 415-9300 (929) 415-9324
Filed By	Kevin Kent McNish
Attorney Docket Number	EXAMPLE
Application Type	ex parte reexam

Files to be Submitted	Category	Document Description	
1 Choose File No file chosen Does your PDF file contain multiple documents? ☐ Yes ☒ No	View All Categories		Delete
Add File			

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Attaching Documents

- Step 1: Choose a file.
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- Step 3: Click “Add File” to add another file.
- Step 4: Repeat Steps 1-3 until you have no more files to attach.
- Step 5. Click “Upload and Validate.”

Attaching Documents – Cover Sheet

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Title of Invention

First Named Inventor

Customer Number or Correspondence Address

Filed By

Attorney Docket Number

Application Type

EXAMPLE

INVENTOR FIRST NAME INVENTOR LAST NAME

174882

McNish PLLC
4602 21st St. #1706
Long Island City
NY
11101
US
docketing@mcnishpllc.com
(929) 415-9300
(929) 415-9324

Kevin Kent McNish

EXAMPLE

ex parte reexam

Files to be Submitted

Category

Document Description

1

Choose File

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Does your PDF file contain multiple pages?

Category

Document Description

General Transmittal

Transmittal of New Application

for public

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 McNish PLLC


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Go-to Paralegal Services for Patent Professionals

Attaching Documents – The Request

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EXAMPLE

First Named Inventor

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Customer Number or Correspondence Address

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4602 21st St. #1706

Long Island City

NY

11101

US

docketing@mcnishpllc.com

(929) 415-9300

(929) 415-9324

Filed By

Kevin Kent McNish

Attorney Docket Number

EXAMPLE

Application Type

ex parte reexam

Files to be Submitted	Category	Document Description
1	Category	Document Description
Choose Document	Reexamination	Receipt of Orig. Ex Parte Request by Third Party
Users are inspecting	Category	Document Description
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Attaching Documents – Copy of the Patent to be Reexamined

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Registered eFilers

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Title of Invention	EXAMPLE
First Named Inventor	INVENTOR FIRST NAME INVENTOR LAST NAME
Customer Number or Correspondence Address	174882 McNish PLLC 4602 21st St. #1706 Long Island City NY 11101 US docketing@mcnishpllc.com (929) 415-9300 (929) 415-9324
Filed By	Kevin Kent McNish
Attorney Docket Number	EXAMPLE
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First Named Inventor

Customer Number or Correspondence Address

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Attorney Docket Number

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EXAMPLE

INVENTOR FIRST NAME INVENTOR LAST NAME

174882

McNish PLLC
4602 21st St. #1706
Long Island City
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11101
US
docketing@mcnishpllc.com
(929) 415-9300
(929) 415-9324

Kevin Kent McNish

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Attorney Docket Number	EXAMPLE
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Title of Invention

EXAMPLE

First Named Inventor

INVENTOR FIRST NAME INVENTOR LAST NAME

Customer Number or Correspondence Address

174882
McNish PLLC
4602 21st St. #1706
Long Island City
NY
11101
US
docketing@mcnishpllc.com
(929) 415-9300
(929) 415-9324

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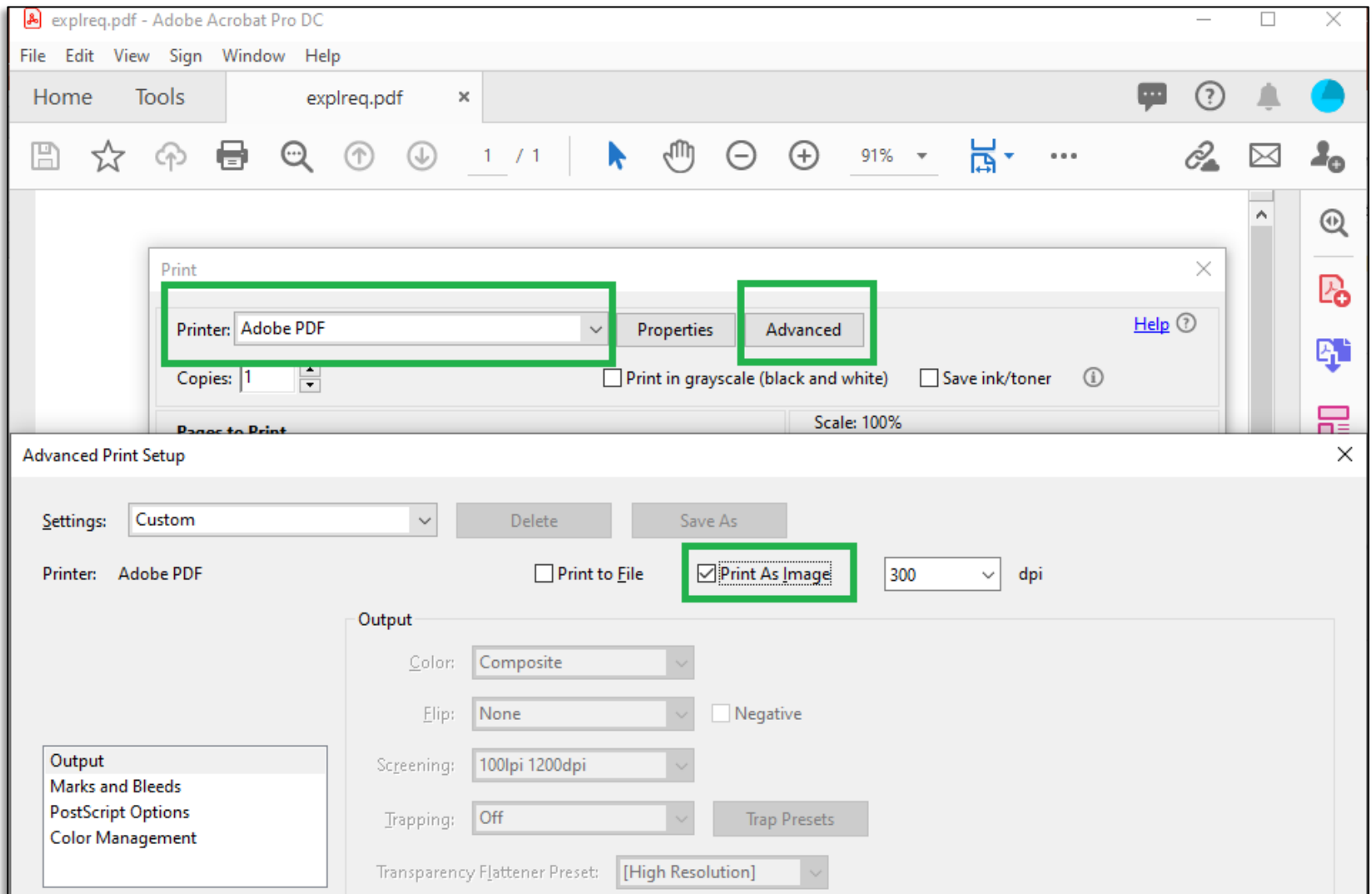
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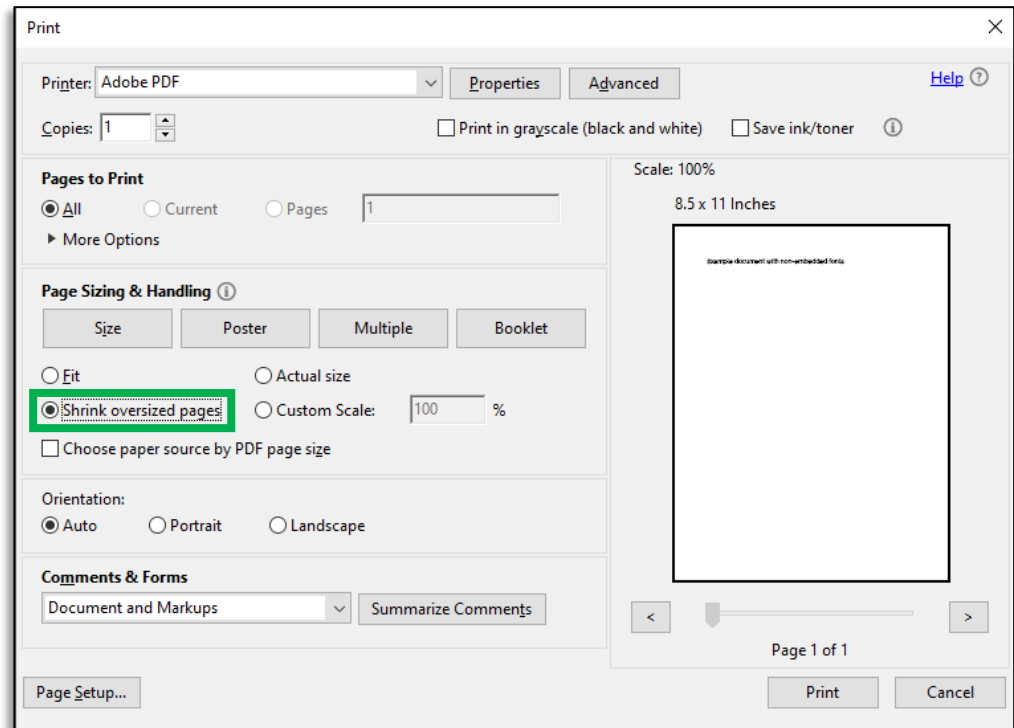
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First Named Inventor	INVENTOR FIRST NAME INVENTOR LAST NAME
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- Petition for Rehearing of Denial
- Response to Petition to Terminate / Vacate
- Reply to Statement on SNQ Decision
- *Notice of Concurrent Proceedings (at any time)*

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*Confirmation Number (EXAMPLE: 1234) ⓘ

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☐ Pre-Grant Publication under 37 CFR 1.211 to 1.221 ⓘ

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Application Number	90014147
Title of Invention	SEMANTIC TO NON-SEMANTIC ROUTING FOR LOCATING A LIVE EXPERT
First Named Inventor	7499903
Customer Number or Correspondence Address	83559
Filed By	Kevin Kent McNish
Attorney Docket Number	11869_0033
Application Type	ex parte reexam

Files to be Submitted	Category	Document Description
1. Check File to File Changes	Petition	Petition for Review of Reexam Denial

- If the USPTO determines that the request does not present an SNQ, it will deny reexamination.
- The requester can file a petition for rehearing within one month of the decision denying reexamination.

37 C.F.R. § 1.515(c).

Statement on Decision Ordering Reexamination

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Application Number	90014147
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First Named Inventor	7499903
Customer Number or Correspondence Address	83559
Filed By	Kevin Kent McNish
Attorney Docket Number	11869_0033
Application Type	ex parte reexam

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- If the USPTO finds that the request does present an SNQ, the patent owner has two months from the decision ordering reexamination to file an optional statement.
- The statement can include claim amendments.

37 C.F.R. § 1.530.

Response to Statement on Decision Ordering Reexamination

- If the patent owner files an optional statement on the SNQ decision, the requester can file a reply within two months of the statement.

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Application Number 90014147

Title of Invention SEMANTIC TO NON-SEMANTIC ROUTING FOR LOCATING A LIVE EXPERT

First Named Inventor 7499903

Customer Number or Correspondence Address 83559

Filed By Kevin Kent McNish

Attorney Docket Number 11869_0033

Application Type ex parte reexam

Files to be Submitted **Category** **Document Description**

1 Choose File No file chosen Petition Petition for Review of Reexam Denial

Does your PDF file contain multiple documents?

Users are advised not to submit form being included among payment method available.

Third Party Note: reply to a patent owner's statement pursuant to 37 CFR 1.565(a).

Category Reexamination

Document Description Reexam Timely Requester's Reply to an Owner's Statement

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37 C.F.R. § 1.535.

Petition to Terminate / Vacate

The screenshot shows the USPTO EFS Web interface. The top navigation bar includes links for 'PATFT', 'Google Patents', 'MyUSPTO', 'Patent Center', 'PTAB E2E', '37 CFR Part 42', 'Casetext', and 'Google Scholar'. The main content area is titled 'EFS Registered' and contains a series of tabs: 'Registered eFilers', 'Please Read Announcements', 'Application Data', 'Attach Documents', 'Review Documents', 'Calculate Fees', 'Confirm & Submit', 'Pay Fees', and 'Receipt'. The 'Attach Documents' tab is active, displaying a warning message: 'A submission has not been filed officially at the USPTO until the e-filer executes the Submit function and the documents are received. The Acknowledgement Receipt is evidence of this submission.' Below this, a list of documents is shown, including 'SEMANTIC TO NON-SEMANTIC ROUTING FOR LOCATING A LIVE EXPERT'. A 'Category' dropdown menu is visible, with 'Reexamination' selected. The 'Document Description' field contains the text 'Receipt of Petition in a Reexam'.

- The patent owner can petition to terminate a reexamination or vacate an order granting reexamination.
 - IPR, CBM, or PGR estoppel
 - Harassment by requester
- A petition to terminate or vacate based on IPR, CBM, or PGR estoppel must be filed within two months of the decision ordering reexamination.

37 C.F.R. §§ 1.181-1.183, 1.540; MPEP 2246.

Response to Petition to Terminate / Vacate

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Application Number	90014147
Title of Invention	SEMANTIC TO NON-SEMANTIC ROUTING FOR LOCATING A LIVE EXPERT
First Named Inventor	7499903
Customer Number or Correspondence Address	83559
Filed By	Kevin Kent McNish
Attorney Docket Number	11869_0033
Application Type	ex parte reexam

Files to be Submitted Category Document Description

Category	Document Description
Reexamination	Reexam - Opposition filed in response to petition

- Call the Examiner and the CRU staff **ASAP** to explain that your client will oppose the petition.
- The response is due within two weeks of the petition.

MPEP 2246.

Office Action Response – Non-Final

- By default, the Patent Owner has two months to respond to a non-final office action.
- But, that response period can be shortened to one month if there is concurrent litigation.

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This is the application data associated with your filing. If any information is incorrect, please click Cancel

Application Number	90014147
Title of Invention	SEMANTIC TO NON-SEMANTIC ROUTING FOR LOCATING A LIVE EXPERT
First Named Inventor	7499903
Customer Number or Correspondence Address	83559
Filed By	Kevin Kent McNish
Attorney Docket Number	11869.0033
Application Type	ex parte reexam

Files to be Submitted	Category	Document Description
1. Choose File Does your PDF documents?	Reexamination	Response after non-final action-owner timely

Third Party Note: The only proper reply submitted by a third party requester after the order is granted, is a requester's reply pursuant to a patent owner's statement (optional) pursuant to 37 CFR 1.530. Exception: Third party requester may provide bare notice of conc time pursuant to 37 CFR 1.565(a).

37 C.F.R. § 1.550(b); MPEP 2263.

Request for Extension

The screenshot shows the 'EFS Registered' application data form. The 'Attach Documents' section is active, displaying application details and a table for documents to be submitted.

Application Data:

- Application Number: 90014147
- Title of Invention: SEMANTIC TO NON-SEMANTIC ROUTING FOR LOCATING A LIVE EXPERT
- First Named Inventor: 7499903
- Customer Number or Correspondence Address: 83559
- Filed By: Kevin Kent McNish
- Attorney Docket Number: 11869_0033
- Application Type: ex parte reexam

Files to be Submitted:

Files to be Submitted	Category	Document Description
1. Choose File No file chosen Does your PDF file contain documents?	Reexamination	Reexam Request for Extension of Time

Third Party Note: The only document reply submitted by a third party requesting a reexamination is a request for a reexamination reply to a patent owner's statement (optional) pursuant to 37 CFR 1.530. Exception: Third party requester may provide bare notice of concurred time pursuant to 37 CFR 1.565(a).

- A request for extension of time must be filed before the due date for the office action response, and must show good cause for the extension.
- In third-party reexams, one month is typical; two months are rarely granted.

37 C.F.R. § 1.550(c); MPEP 2265.

Information Disclosure Statement

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Registered eFilers | Please Read Announcements | Application Data | Attach Documents | Review Documents | Calculate Fees | Confirm & Submit | Pay Fees | Receipt

Attach Documents

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Filed By	Kevin Kent McNish
Attorney Docket Number	11869.0033
Application Type	ex parte reexam

Files to be Submitted | **Category** | **Document Description**

1. Choose File | No file chosen
Does your PDF file contain multiple documents?

Users are advised not to submit credit card payment information through EFS-WEB.

Third Party Note: The only proper reply submitted by a third party requester after the order is granted, is a requester's reply pursuant to a patent owner's statement (optional) pursuant to 37 CFR 1.530. Exception: Third party requester may provide bare notice of concurred time pursuant to 37 CFR 1.565(a).

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- The Patent Owner remains under a duty of disclosure during the reexamination and should file Information Disclosure Statements accordingly.
- Copies of foreign references and non-patent literature must be filed with the IDS.

37 C.F.R. § 1.555.

Office Action Response – Final

- By default, the Patent Owner has two months to respond to a final office action.
- But, that response period can be shortened to one month if there is concurrent litigation.

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Application Number	90014147
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First Named Inventor	7499903
Customer Number or Correspondence Address	83559
Filed By	Kevin Kent McNish
Attorney Docket Number	11869.0033
Application Type	ex parte reexam

Files to be Submitted	Category	Document Description
1. Choose File	Reexamination	Response after non-final action-owner timely

Third Party Note: The only proper reply submitted by a third party requester after the order is granted, is a requester's reply pursuant to a patent owner's statement (optional) pursuant to 37 CFR 1.530. Exception: Third party requester may provide bare notice of concurred time pursuant to 37 CFR 1.565(a).

37 C.F.R. § 1.550(b); MPEP 2272.

Notice of Concurrent Proceedings

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Customer Number or Correspondence Address	83559
Filed By	Kevin Kent McNish
Attorney Docket Number	11869_0033
Application Type	ex parte reexam

Files to be Submitted

Category	Document Description
Reexamination	Notice of concurrent proceedings / decisions

Third Party Note: The only document reply submitted by a third party requester after a final decision is a request for reconsideration of a patent owner's statement (optional) pursuant to 37 CFR 1.530. Exception: Third party requester may provide bare notice of concurrent proceedings pursuant to 37 CFR 1.565(a).

- The requester has the opportunity, and the Patent Owner has the obligation, to keep the USPTO apprised of relevant related proceedings.
- A notice of concurrent proceedings can be filed at any time.

37 C.F.R. § 1.565(a); MPEP 2280, 2282.

Patent Owner Appellate Filings

- Consult MPEP 1204, 2273, and 2274 for appellate filings.

The screenshot displays the EFS Web interface for filing documents. The left sidebar shows the 'Attach Documents' section with application data:

- Application Number: 90014147
- Title of Invention: SEMANTIC TO N
- First Named Inventor: 7499903
- Customer Number or Correspondence Address: 83559
- Filed By: Kevin Kent McNish
- Attorney Docket Number: 11869.0033
- Application Type: ex parte reexam

The main area shows a list of document categories for selection:

Category	Document Description
PTAB	Notice of Appeal Filed
PTAB	Appeal Brief Filed
PTAB	Reply Brief Filed
PTAB	Request for Oral Hearing

**Remember that every filing
needs a certificate of service.**

Questions?